

Mr. McElhone's Pleas.

As reported in the *Herald*, Mr. McElhone moved that the Chairman do now leave the chair, so that he could refer to the attack made upon him with regard to the case of Mr. Garrett. He had no wish in what he had to say to refer to Mr. Garrett any further than he could help in the matter. On Saturday night he wrote to his solicitors in reference to the statement of Sir Henry Parkes as follows:—

"Sydney, 17th May, 1879.

"Dear Sir,—In the case of myself v. Garrett you will see by the Parliamentary report that Mr. Garrett has alleged that the pleas have prevented him from proceeding to trial, and going into the witness box to deny the truth of the statements in the declaration. Will you be good enough to let me know if this is so, as I left the defence of the action entirely to you after giving you the particulars of the case and the names of the witnesses I required you to subpoena, to prove that I was perfectly justified in saying what I did, under the circumstances.

"Although you never showed me the pleas before filing them you subsequently informed me that the truth of the matters alleged in the declaration, and my justification for uttering them would be tried first by a jury, and that the question whether words spoken in the Assembly by a member is actionable or not, would be subsequently tried before the full Court as a point of law.

"Let me hear from you at your earliest convenience, as my character has been attacked in the Assembly for the course adopted, although you know I would not presume to dictate to you how to conduct the defence to any action I should entrust you with.

"The only manner in which I interfered with you was in giving instructions to you on several occasions to force the action on to trial, and not allow it to be delayed so long.

"Yours truly,
"J. McElhone."

"Temple-court, Sydney, 19th May, 1879.

"J. McElhone, Esq., Upper William-street South.

"YOURSELF v. GARRETT.

"Dear Sir,—We are in receipt of your letter of the 17th instant, and have perused the parliamentary report therein referred to.

"You are perfectly correct in stating that you never saw the pleas, or knew what they were to be, until after they were put on the file of the Supreme Court. The instructions you gave us for this defence and the list of witnesses you required us to subpoena on your behalf went to show the defence you expected would be set up, that you received what you had a right to consider reliable information of the truth of what you stated, that you made the statements bona-fide believing in their truth and 'not maliciously,' but in the performance of your public duty; such defence could only be raised by a plea of 'not guilty.'

"It was mentioned, in consultation with you, that the question of privilege of Parliament would inevitably arise in the case, and we were of course aware that such defence would come under the plea of 'not guilty,' as stated in the three opinions given by counsel to the plaintiff and already published.

"The question then arose whether, in a legal point of view, it would be advisable to make this privilege the subject of a special plea. This matter was considered apart from you in consultation with counsel who drew the plea, and as the defence was available under either plea, the question was solely one of pleading, and one upon which we did not think it necessary to consult you.

"We will mention the grounds upon which we considered it advisable to set up this defence in a distinct plea. The question raised by it is one of great public importance, and there has been no judicial decision that the privilege extends to members of Colonial Legislatures. We considered it probable that the plaintiff, in bringing this action claiming £5000 damages, was prepared to contest this point and show the law was in his favour. By putting the matter in a distinct plea we gave the plaintiff an opportunity of keeping this legal question separate, so that a decision might be obtained upon it from the Court upon demurrer.

"It is not true that the course prevented the plaintiff from going to trial on the facts, and thereby clearing his character to the utmost, because it was open to him to join issue on the plea of 'not guilty' and set the case down for trial on that issue alone, leaving the matter of law under the special plea to be decided subsequently. If the plaintiff had adopted this course, and you had taken the point of privilege at the trial upon the plea of 'not guilty,' after the opening address of plaintiff's counsel, thereby preventing him and his witnesses from being heard in the witness-box, more grounds would exist for the accusations made against you; but no one has a right to assume such a course would have been adopted, and the separation of the defences in your pleas with the opportunities thereby afforded to the plaintiff as before mentioned clearly tend to prove the contrary.

"We enclose as showing the opinion of counsel who drew the plea, a copy of the memorandum received by so from him with the draft at the time showing that it was anticipated the case would go to trial.

"We are, dear Sir, yours truly,
"GANNON and McLAUGHLIN."

[Copy.]

"OPINION.

"I send herewith draft pleas, namely,

"1. Not guilty.

"2. Privilege of Parliament.

"These are the pleas which I recommend, and I may point out that the defendant will not be precluded by them in any way from proving the truth of all or any of his statements upon the trial, so far as it may be advisable, and in his power, to produce evidence in substantiation of them.

(Signed) OCEIL B. STEPHEN.

"21st April, '79."

THE SYSTEM OF GRATIFICATION, which the genius of Newton developed from the fall of the apple, established a cardinal scientific principle. So the discovery of the virtues of the Italian jumper berry enabled Ubaldo Weller to work out his celebrated SCIENTIFIC ANASTROPHIC SCHEMATA, which has performed as many cures, and saved as much suffering, as many of the sovereign remedies bearing the imprint of some of the most distinguished names to be found in the annals of medical history.

Walking 180 Miles in Forty-eight Hours.

(From the S. M. Herald.)

On Saturday evening there was a very large attendance of spectators at the Guild Hall to witness the conclusion of Mr. W. Edwards' astonishing feat of walking 180 miles in less than forty-eight hours—a feat which he achieved with twenty-eight minutes to spare, and apparently without being very much distressed. Mr. Edwards started on his formidable journey on Thursday evening, at 9 o'clock. A course had been marked out round the hall exactly 73 yards and 1 foot in circumference. It therefore required the pedestrian to make the circuit of the hall twenty-four times in order to walk a mile; and it took no less than 4320 such revolutions to complete the 180 miles. A committee of gentlemen interested in athletics had been appointed, who kept count of the number of laps traversed, and the number of miles completed from time to time was exhibited in large figures on a board on the platform. Towards the close of the performance the excitement of the spectators was very great, and loud cheers greeted the plucky performer as mile after mile was added to his score. At 20 minutes past 8 o'clock on Saturday night he finished the 179th mile, and when this fact was announced some bouquets were thrown to him from the gallery by some ladies. These Mr. Edwards carried with him during the greater part of his last mile, which he completed at twenty-eight minutes to 9 o'clock, amid the ringing cheers and hearty congratulations of his admiring friends. To show that he was not used up Mr. Edwards continued to walk till 9 o'clock, by which time he had nearly completed two miles beyond the task he had set himself to accomplish. A collection was made in the room for the pedestrian, and the proceeds will be invested in the purchase of a handsome silver belt, to be presented to Mr. Edwards as the champion long distance walker of Australia. During his recent performance Mr. Edwards did his quickest mile in 8 minutes 30 seconds, and he did two consecutive miles in 9 minutes each. After having walked for 30 miles he rested for about 20 minutes; at 55 miles he took a rest of 3 minutes and 8 seconds. At 100 miles he took a spell of about three-quarters of an hour, and after 15 miles more he took another half-hour's repose. At 140 miles he again rested for about two hours, and he took another hour after completing 170 miles. With these exceptions Mr. Edwards had only short respites of a few minutes at a time all through his weary journey. The last three miles of the 180 were done in 14 minutes, 15 minutes, and 13 minutes respectively.

A Lonely Life.

In a recent number of the *San Francisco Call* an account is given of an Indian woman who was accidentally abandoned on San Nicolas Island, off the coast of Southern California, and spent 18 years alone there before she was rescued. The fact of her existence was discovered by a man who went from the mainland to hunt for otters, and who found footprints sunk deeply in the ground. He was unable to follow up these indications till nearly three years, when one of a party who accompanied him came suddenly upon the object of their search. She was in a small circular enclosure made of brushwood, about 5ft high, and 6ft in diameter, with a small opening on one side. She was clothed with a garment made of skins of the shag, a species of duck that can neither walk nor fly. This garment reached almost to her ankles when she stood erect. She was sitting cross-legged, skinning seal-blubber with a rude knife made of a piece of hoop iron driven into a piece of wood. There was no covering on her head, except a thick matted mass of hair, of yellowish brown colour, probably owing to exposure to the sun and the weather; it was short, as if the ends had rotted off. There were some wild dogs on the island, a few of which kept near her, and seemed to regard her as a mistress. She had lived on a plant resembling cabbage, called by Californians *palo santo*, and a root known by the name of *corcomite*, also blubber of the various kinds of seals, &c. She had a rude apparatus for catching shellfish, and strong fishing lines made of seal sinews, which seemed to indicate that she fished in the ocean. The expression of her face was pleasing, her features were regular her complexion much fairer, and her form more symmetrical than that of the Indian women on the adjoining mainland. Some suspect that she belonged to a tribe much further north. She could not understand anything said to her in any of the Indian dialects of South California, but she had a wonderful capacity for conversing by signs. She retained all her teeth, but they were worn low, supposed to be due to her chewing tough and hard articles of food. Her age appeared to be about 50 years. She bowed to all who came near her, greeting them with a smile. She freely accompanied her discoverers to their vessel. She showed singular dexterity in making water vessels from grass and asphaltum, a substance which is plentiful both on the island and the mainland. She seemed to recognise various appliances of civilisation. She died about seven weeks after reaching the mainland, partly from the effects of a fall, partly from dysentery, by eating fruits and vegetables. Padre Gonzalez, the superior of the mission of Santa Barbara, has sent her dress of shag-skins, her basket, and implements to Rome, to the Museum of the Propaganda.

THE PRINCESS'S DOWRY AS A WIDOW.—The treaty between the Queen of Great Britain and the Emperor of the Germans assent the recent royal marriage engages Victoria to secure to the princess the annual sum of £1500, to be paid half yearly to the bride for her sole and separate use, and without any power of anticipation during the period of their marriage. If the wife survive the prince, the Queen is to secure her, in lieu of dower, as a person of full legal age, provision, £3000 a year throughout her life, and to be paid quarterly to her. The Emperor grants the princess a dowry of 300,000 marks, of which one-half is to be regarded as an actual marriage portion, such as the princesses of Prussia are entitled to have; the other as the personal gift of the Emperor, passing into the free possession of the princess. The dowry, not a magnificent one, is to be delivered within four weeks after the marriage, to such persons as the Queen may select. The Emperor also agreed to provide the lady with princely apparel, jewels, and an outfit suitable to a Prussian princess.—*American paper.*

"What do you know of the character of this man?" was asked of a witness at a police court the other day. "What do I know of his character? I know it to be unbleachable, your Honor," he replied, with much emphasis.

Of One Accord.—The only difference between a violin concerto and young ladies' preparation for a ball is that one is a movement for strings as the other is for beauty.

Pianofortes.

Erard's, Broadwood's, and Collard's.

70-GUINEA PIANOS

H. PASKINS,
IMPORTER OF
Erard's, Broadwood's, and
Collard's
PIANOFORTES
HIGH-STREET,
WEST MAITLAND. 3107

The Largest Sales in Australia.

REDUCED PRICE LIST.

THE "HOME" SHUTTLE
AMERICAN LOCKSTITCH
SEWING MACHINE.
The Best and Most Easily Worked Family
Sewing Machine in the Market,
WITHOUT REGARD TO PRICE.

EVERY GENUINE
HOME SHUTTLE
SEWING MACHINE
IS STAMPED,
M. MOSS & CO
SOLE AGENTS
SYDNEY N.S.W.
!!! BEWARE OF !!!
GERMAN & BIRMINGHAM
IMITATIONS

WE feel confident that whenever persons wishing to buy Sewing Machines will give the

Home Shuttle Sewing Machine
A FAIR TRIAL
IN COMPETITION WITH OTHERS,
It will have the Preference.
In proof of their superiority over other Machines
we

Guarantee them for Five Years.

With the Machine is furnished—Hammer, Braider Shuttle Bobbin, Oil-can, Oil, Screw-driver, Five Needles, Gauge, Table-clip, and Directions for Use. All securely packed in strong cases, without extra charge.

It will Hem, Fell, Bind, Cord, Braid, Sew, Tuck, Sew, Hemstitch, Gather, and Sew on at the same time; and will work equally well on

SILK, LINEN, WOOLLEN, AND COTTON GOODS

WITH SILK, LINEN, OR COTTON THREAD.

No. 1.—HAND MACHINE. Reduced to \$4 N.B.—This is also adapted for use on Table and Treadle, which we will supply at any time, of elegant American manufacture, for \$2.

No. 2 MACHINE, for Treadle use only, having the very great advantage of being set level with the table, complete, with elegant Ornamented Iron Stand with handsome polished top, complete. Reduced to \$6.

No. 3 MACHINE, as above, with polished cover to look and to protect Machine. Reduced to \$7.

Where the genuine HOME SHUTTLE MACHINES stamped with our name, are not procurable, we will send them direct to purchasers on receipt of remittance, reference.

Sole Agents for Australia

M. MOSS & CO.
WYNARD LANE, SYDNEY

Look for the Stamped Name

THESE CELEBRATED GENUINE MACHINES
ARE NOW PROCURABLE FROM

Messrs DAVID COHEN & CO.
Mr. ROBERT BLAIR, and
Messrs. WOLFE & GORRICK

HIGH-STREET WEST MAITLAND.

Also, from

T. MOFFITT, Morphett
D. MORRISON, Singleton
M. CAMPBELL, Newcastle
T. S. GREEN, Quirindi and Murrumbidgee
COHEN and LEVY, Tamworth
ALLEN BROTHERS, Tamworth
J. RICHARDSON and CO., Armidale
COLLIE BROS and CO., Inverell.

5115

Intercolonial Exhibition.

1876.

SECTION 7—CLASS 656.

THE FIRST PRIZE
WAS AWARDED TO THE
CASTLEMAINE BREWERY
For the Purity and Excellence
OF
THEIR ALE.

KINGSFORD'S
OSWEGO
PREPARED CORN

MADE OF AMERICAN INDIAN CORN
PURE AND UNADULTERATED.

REPORT OF DR. A. H. HASSALL,
London, 14th September, 1874.

"I have subjected to Microscopical Examination and Chemical Analysis, a sample of KINGSFORD'S OSWEGO PREPARED CORN, which has been known to me for many years."

"I find that it consists entirely of the grain of INDIAN CORN, is very PURE, and may be regarded chemically and dietetically as an ARROWROOT and taken in conjunction with Milk or Beef Tea, constitutes a valuable article of diet for Infants and Young Children."

ARTHUR H. HASSALL, M.D.,
Author of "Food and its Adulterations," &c.

THE MOST DELICIOUS OF ALL PREPARATIONS FOR Puddings, Custards, Biscuits, &c., as it takes the full flavour of every kind of seasoning.

Full Directions with each Packet.

SOLE WHOLESALE AGENTS—
M. MOSS & CO.
SYDNEY.

THE CELEBRATED
WOLFE'S
SCHNAPPS
THE PUREST STIMULANT
IN THE WORLD

31 FREE GIFTS!

THE PROPRIETORS OF WOLFE'S AROMATIC SCHNAPPS, to induce the destruction and consequent improper use of their Wrappers and Labels, and thus further protect the public against fraud and deception, have inclosed in the wrappers, or under the label on the bottles, since 1st October, 1878, and continue to enclose

IN EVERY DAY'S PACKING

THREE 31 ORDERS

which are drawn upon the Undersigned, who will cash them on presentation, or return Bank Notes in exchange for them, if posted to their address in Sydney or Melbourne.

To secure these Gifts, the Public must be careful to ask for, and accept nothing but, the

GENUINE
UDOLPHO WOLFE'S SCHNAPPS

With Our Name upon the Top Label.

The Orders we have already paid are open for public inspection at our Sydney Office.

M. MOSS & CO.
WYNARD LANE, SYDNEY,
10, MARKET BUILDINGS MELBOURNE. 9920

SALES BY AUCTION:

FAT CATTLE.—FAT CATTLE.

SPARKE & CLIFT have received instructions from Mr. W. Lynch to sell by auction, at Campbell's Hill, on THURSDAY, the 22nd May, 1879, at Eleven o'clock,

20 Head PRIME and WEIGHTY FAT PADDOCK-FED COWS.

Terms cash. 3849

SPARKE & CLIFT have received instructions from Henry Crocker, Esq., to sell by auction, at Campbell's Hill, on THURSDAY, the 22nd May, 1879, at Eleven o'clock,

30 Head PRIME and WEIGHTY FAT PADDOCK-FED BULLOCKS from the well-known Woodville Estate.

Terms cash. 3850

SPARKE & CLIFT have received instructions from J. K. Mackay, Esq., to sell by auction, at Campbell's Hill, on THURSDAY, the 22nd May, 1879, at Eleven o'clock,

40 Head PRIME FAT BULLOCKS, paddock-fed.

Terms cash. 3861

FAT SHEEP. FAT SHEEP.

SPARKE & CLIFT have received instructions from E. S. Holmes, Esq., to sell by auction, at Campbell's Hill, on THURSDAY, the 22nd May, 1879, at Eleven o'clock,

680 Really Prime and Weighty FAT WETHERS, from pasturage adjoining the famous Warrah Estate.

Terms cash. 3796

FAT AND STONE CATTLE. SPRINGERS.

SPARKE & CLIFT have received instructions to sell by auction, at Campbell's Hill, on THURSDAY, the 22nd May, 1879, at Eleven o'clock,

30 Head PRIME FAT and CHOICE STONE COWS and HEIFERS, amongst which are some good Springers.

Terms cash. 3884

FAT FIGS. FAT FIGS.

SPARKE & CLIFT have received instructions to sell by auction, at Campbell's Hill, on THURSDAY, the 22nd May, 1879, at Eleven o'clock,

25 PRIME FAT FIGS.

Terms cash. 3865

FAT BULLOCKS. FAT BULLOCKS.

SPARKE & CLIFT have received instructions from Mr. W. Lynch to sell by auction, at Campbell's Hill, on MONDAY, the 26th May, 1879, at Eleven o'clock,

60 Head PRIME and WEIGHTY FAT BULLOCKS, from first-class paddocks.

Terms cash. 3852

500 HEAD SUPERIOR STONE BULLOCKS. IN FORWARD CONDITION.

ABOUT THE END OF MAY.

SPARKE & CLIFT have received instructions from Guy Crawford, Esq., to sell by auction, at Bressa, about the end of May,

500 Head SUPERIOR STONE BULLOCKS, aged from 3 years up, well-bred, and remarkably good doers. Will be sold in lots to suit purchasers.

The exact day of sale will appear in the Murrumbidgee and Gundah papers.

Terms cash. 3898

EXTRA PRIME FAT WETHERS.

BRUNCKER & WOLFE have received instructions to sell by auction, at Campbell's Hill, on THURSDAY, the 22nd May, 1879, at Eleven o'clock,

540 Really grand and WEIGHTY FAT WETHERS from the renowned Walhallow Run, estimated to average 70lbs. each.

Terms cash. 3858

PRIME AND WEIGHTY FAT CATTLE.

BRUNCKER & WOLFE have received instructions from Messrs. Bowman Bros., to sell by auction, at Campbell's Hill, on THURSDAY, the 22nd May, 1879, at Eleven o'clock,

700 PRIME FAT EWES, excellent quality.

Terms cash. 3867

PRIME FAT EWES.

BRUNCKER & WOLFE have received instructions to sell by auction, at Campbell's Hill, on THURSDAY, the 22nd May, 1879, at Eleven o'clock,

950 PRIME FAT EWES from Liverpool Plains.

Terms cash. 3864

EXTRA PRIME AND WEIGHTY FAT BULLOCKS.

BRUNCKER & WOLFE have received instructions from Andrew Loder, Esq., to sell by auction, at Campbell's Hill, on THURSDAY, the 22nd May, 1879, at Eleven o'clock,

100 Head of especially well-bred very Prime and Weighty FAT BULLOCKS, fattened in the famous Colley Creek Paddock, and estimated to average fully 800lbs.

Terms cash. 3856

PRIME FAT LAMBS.

BRUNCKER & WOLFE have received instructions to sell by auction, at Campbell's Hill, THIS DAY, at Eleven o'clock,

80 PRIME FAT LAMBS

20 Extra Prime and Weighty Fat Wethers, from "Piallaway."

Terms cash. 3896

PRIME FAT BULLOCKS.

BRUNCKER & WOLFE have received instructions from J. Neelin, Esq., to sell by auction, at Campbell's Hill, on MONDAY, the 26th May, 1879, at Eleven o'clock,

40 Head of PRIME and WEIGHTY FAT BULLOCKS.

Terms cash. 3861

PRIME AND WEIGHTY FAT BULLOCKS.

BRUNCKER & WOLFE have received instructions from George Loder, Esq., to sell by auction, at Campbell's Hill, on MONDAY, the 26th May, 1879, at Eleven o'clock sharp,

60 Head of PRIME and WEIGHTY FAT COWS, grand quality.

Terms cash. 3895

FURN LINCOLN HAM.

BRUNCKER & WOLFE have received instructions from S. A. Craik, Esq., to sell by auction, at Campbell's Hill, on THURSDAY, the 29th May, 1879, at Eleven o'clock,

A Young PURE-BRED LINCOLN HAM, imported from "Victoria."

Terms cash. 3864

250 HEAD OF FIRST-CLASS STONE CATTLE, CONSISTING OF

BULLOCKS AND COWS, OF

GOOD FATTENING AGES, IN

FAIR CONDITION, AND FOR ABSOLUTE SALE.

BRUNCKER & WOLFE have received instructions to sell by auction, at Campbell's Hill, on an Early Day,

250 Head of STONE BULLOCKS and COWS, from 3 to 5 years old, from "Wabba" Station, favourably known as splendid doers, and for unserved sale.

Terms cash. 3860

COMPACT WELL-SITUATED AND

PRODUCTIVE AGRICULTURAL AND DAIRY FARM,

KNOWN AS

"GORAN," OR "MOORHOUSE'S" FARM,

COMPREHENDING

104 ACRES (MORE OR LESS), FENCED,

Within One Mile of the Mining Township of Mimi, and adjoining the properties of Messrs. WHITWORTH and LUNAGHAN.

TITLE PERFECT.

BRUNCKER & WOLFE have received instructions from Mrs. Birmingham, to sell by auction, at Brown's (late Fullard's) Hotel, on an EARLY DAY,

THE "GORAN" ESTATE, containing 104 Acres (More or Less) of First-class Grazing and Cultivation Land, occupying one of the best positions in the district for its unrivalled facilities.

Terms at sale. 3517

WEST MAITLAND. WEST MAITLAND.

PRELIMINARY ADVERTISEMENT.

IMPORTANT SALE
OF
VALUABLE

ELIGIBLY SITUATED
HOUSEHOLD PROPERTY

OCCUPYING
DESIRABLE AND HEALTHFUL POSITIONS
IN THE

ABOVE IMPROVING LOCALITY.

A Lonely Life.

In a recent number of the *San Francisco Call* an account is given of an Indian woman who was accidentally abandoned on San Nicolas Island, off the coast of Southern California, and spent 18 years alone there before she was rescued. The fact of her existence was discovered by a man who went from the mainland to hunt for otters, and who found footprints sunk deeply in the ground. He was unable to follow up these indications till nearly three years, when one of a party who accompanied him came suddenly upon the object of their search. She was in a small circular enclosure made of brushwood, about 5ft high, and 6ft in diameter, with a small opening on one side. She was clothed with a garment made of skins of the shag, a species of duck that can neither walk nor fly. This garment reached almost to her ankles when she stood erect. She was sitting cross-legged, skinning seal-blubber with a rude knife made of a piece of hoop iron driven into a piece of wood. There was no covering on her head, except a thick matted mass of hair, of yellowish brown colour, probably owing to exposure to the sun and the weather, it was short, as if the ends had rotted off. There were some wild dogs on the island, a few of which kept near her, and seemed to regard her as a mistress. She had lived on a plant resembling cabbage, called by Californians *palo santo*, and a root known by the

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